

After the hearing, upon the Court's ruling, moving party is also ordered to submit a proposed order consistent with the Court's ruling by no later than September 21, 2026, by 5:00 p.m.

Plaintiff's request to vacate the 5/14/26 sanctions is not part of Defendant's noticed motion and is not determinative to the requested relief. Plaintiff should file a proper request. Court does not rule on this request.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2502395	HALL vs CITY OF RIVERSIDE	MOTION FOR RECONSIDERATION RE ORDER FOR SANCTIONS

Tentative Ruling:

The motion is granted. The sanctions in the amount of \$250 issued on Cross-Complainant County of Riverside and counsel Christopher Lockwood on July 28, 2026 are vacated.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2506478	RIVERA vs MCC PIPELINE, INC.	MOTION FOR RELIEF UNDER CCP SEC 473(B)

Tentative Ruling:

Under CCP §473(b), the court has broad discretion to relieve a party “upon any terms as may be just...from a judgment, dismissal, order or other proceeding taken against him or her through his or her mistake, inadvertence, surprise or excusable neglect.” CCP § 473(b) notably provides for two distinct types of relief – “discretionary” and “mandatory.” (*Luri v. Greenwald* (2003) 107 Cal.App.4th 1119, 1124.) Under the discretionary relief provision, the court has discretion to allow relief from a “judgment, dismissal, order, or other proceeding taken against” a party or his or her attorney on a showing of “mistake, inadvertence, surprise, or excusable neglect.” (*Ibid*; *see also Martin Potts & Associates, Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 438.)

Where discretionary relief is sought, as it is here, the burden is on the moving party to show that any neglect was excusable. This means showing the default or adverse action could not have been avoided through the exercise of ordinary care. (*Jackson v. Bank of America* (1983) 141 Cal.App.3d 55, 58.) Evidence the litigant was “busy” and “forgot” is not excusable neglect. (*Andrews v. Jacoby* (1919) 39 Cal.App. 382, 383-384.)

Plaintiffs seek relief under CCP § 473(b) from discovery orders entered after counsel's “good faith but thwarted attempts to delivery discovery, file an opposition to the motion(s), and appear remotely.” They claim these attempts were derailed by software